

information/evidence and the requested manner of distribution of the net settlement is illegal. The following issues will need to be addressed before the Court will consider granting the Petition.

- Additional information regarding the injury is required. This includes pictures and medical records that show the significance of the initial injury and the scarring that remains. Evidence regarding any future scar revision or surgeries that may be required and any mental health treatment the minor may seek to address the ongoing emotional distress must be provided.
- Attachment 10.c. is missing. The Court requests information for how the settlement is being funded (insurance proceeds or private payment). The Court also requires information regarding the policy limits for available insurance policies and the financial situation of Defendant.
- Item 12 was left completely blank despite the minor receiving medical treatment on at least two occasions. No information has been provided for any medical expenses that were paid and by whom. Item 12 must be completed and medical bills must be attached. Petitioner is required to determine if any medical expenses were paid by Medi-Cal and provide notice of the claim to the Director of Health Care Services as noted in Item 12.b.4.(a) or comply with Item 12.b.4.(b).
- Based on the attorney fee request in Item 13, counsel is requesting 40% of the gross settlement. Attachment 13.a. was not included. Counsel is ordered to review and comply with CRC 7.951. The written attorney fee agreement was not included as Attachment 17.a. Both are required.
- In Item 18.b.(5), Petitioner requests that the \$90,000 net settlement be paid or delivered to the minor's parent, without bond. This option is only available if the value of the minor's estate, including the money to be delivered, is \$5,000 or less. \$90,000 far exceeds that limit, therefore, the proposed plan is illegal. Petitioner will need to determine a different plan for the net proceeds. Petitioner is ordered to carefully review Item 18 along with the relevant portions of the Probate Code and California Rules of Court in order to determine which plan is in the best interest of the minor. The most common methods are funding a blocked account or purchasing an annuity. If the new plan is to fund a blocked account, Petitioner must provide a proposed Order to Deposit Funds in Blocked Account (Form MC-355) and Attachment 18.b.(2) must be attached to the Amended Petition. If the new plan is to purchase an annuity, Petitioner will need to provide the purchase agreement for the annuity that includes all payments to be made over the life of the annuity as Attachment 18.b.(3). Petitioner is reminded that regardless of the plan selected, the Court will require proof that the settlement funded and net proceeds were distributed per the Order Approving Compromise.
- Petitioner did not provide a proposed Order Approving Compromise (Judicial Council Form MC-351) which is a mandatory form.
- No Proof of Service was filed indicating that Defendant was served. Service of the Petition on all parties is necessary.

Due to the extensive issues with the Petition, Petitioner will need to file an Amended Petition that includes all necessary evidence. Time is of the essence as the settlement cannot fund and the minor will not have the ability to receive interest on the settlement until funded. The Court intends to continue the matter to **Monday, August 10, 2026 at 8:30 a.m. in Department 63** for hearing on the Amended Petition. The Amended Petition is ordered to be filed no later than July 27, 2026. If Petitioner is unable to comply with the deadline, Petitioner is ordered to file by July 27, 2026 a status update informing the Court of the status of any outstanding issues, the progress made for each, and the plan/timeline for filing the Amended Petition. The clerk is directed to vacate the review hearing presently calendared for July 13, 2026.

GREAT WEST CASUALTY COMPANY VS. BOYD

CASE NUMBER: 25CVG-00585

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on April 13, 2026 to Plaintiff Great West Casualty Company and counsel Cholakian & Associates for their

failure to timely seek entry of default and failure to timely prosecute. The Court notes that default was entered against the only named Defendant on December 12, 2025. Plaintiff was required to obtain a default judgment within 45 days of entry of default. CRC 3.110(h). The OSC issued for failure to timely seek entry of default, not failure to timely obtain a default judgment. Due to the typographical error, the OSC cannot be sustained. The OSC that issued on April 13, 2026 is **DISCHARGED**. The Court directs the clerk to issue an OSC Re: Sanctions to Plaintiff and Counsel for failure to timely obtain a default judgment as required by CRC 3.110(h) and failure to timely prosecute. Hearing on the OSC will be on **Monday, August 3, 2026 at 8:30 a.m. in Department 63.** The Court notes that while Plaintiff has sought a default judgment twice, in both instances the proposed judgment was returned for errors made by Plaintiff. Plaintiff is **ORDERED** to obtain a default judgment by the next hearing date.

JPMORGAN CHASE BANK, N.A. VS. ABRAHAM

CASE NUMBER: 25CVG-01939

Tentative Ruling on Motion for Order that Matters in Requests for Admission of Truth of Facts be Deemed Admitted: Plaintiff JPMorgan Chase Bank, N.A. seeks an order deeming the truth of the matters specified in Plaintiff's Requests for Admission, Set One to be admitted by Defendant Molly A. Abraham. Despite being timely served, Defendant not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The Court confirms the trial date of November 23, 2026.

MCCLOSKEY VS. CITY OF REDDING

CASE NUMBER: 26CV-0209559

Tentative Ruling on Amended Petition for Order Relieving Petitioner from Provisions of Gov. Code § 954.4 (Gov. Code § 946.6) and for Injunctive Relief Abating Public and Private Nuisance: Petitioner Allen Donald McCloskey filed an Amended Petition for Order Relieving Petitioner from Provisions of Gov. Code § 954.4 (Gov. Code § 946.6) and for Injunctive Relief Abating Public and Private Nuisance on April 13, 2026. The Amended Petition is opposed by Respondent City of Redding.

As a preliminary matter, while Petitioner has added "Injunctive Relief Abating Public and Private Nuisance" when filing the Amended Petition, this is not proper. This case was opened as a petition for relief from the requirement that Petitioner file a government tort claim prior to filing an action against a government entity. Should Petitioner intend to move forward with any claim against Respondent, or any other government entity, Petitioner would need to file a complaint under a separate case. This tentative ruling addresses only the merits of